IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-513
CP (CAA) No.-33/230/232/PB/2021

IN THE MATTER OF:
MV Impex Pvt. Ltd. And Ors. With Bansal Coal Udyog Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232

Order delivered on 19.10.2022

CORAM:
JUSTICE TELAPROLU RAJANI,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. P nagesh, Mr. Suhas Puthige, Sr. Advs., Mr. Barsha Dikshit, PCS
For the Respondent	:
For the OL	: Ms. Hemlata Rawat, Mr. Aayushmaan Vatsyayana, Advs.
For the IT Deptt.	: Mr. Zoheb Hossain, Sr. St. Counsel, Mr. Parth Semwal, Mr. Vipul Agrawal, Jr. St. Counsel for Revenue
For the RD	: Ms. Shankari Mishra, Adv.

ORDER

We have heard Ld. Counsel for the Applicant. Ld. Counsel for the Liquidator is also present and submitted that there is no objection to the proposed scheme. Ld. Counsel for the Income Tax Department has appeared and submitted that they have no objection to the proposal so long as the outstanding Income Tax dues are cleared. Ld. Counsel for the Applicant has submitted that they have filed the affidavit cum undertaking that they will pay all the Income Tax dues as per law. We have heard the arguments of the Applicant as well as the arguments of the Proxy Counsel for the RD and we have gone through the paper book. Order in this matter is **reserved.**

-Sd/-

(RAHUL BHATNAGAR)
MEMBER (T)

-Sd/-

(JUSTICE TELAPROLU RAJANI)
MEMBER (J)

Amit Tiwari